

Franciscus Dylan Rosario,
7624 Melody Drive,
Rohnert Park, CA 94928,
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
Carbone, Smith & Koyama, LLP;
Michael R. Chambers;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
and DOES 1 through 20, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

[PROPOSED] ORDER

DENYING OR REDUCING FEES

Hearing: September 8, 2026

Time: 9:00 a.m.

Dept.: 301

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Code of Civil Procedure section 1005, subdivision (b); Code of Civil Procedure section 1010; California Rules of Court, rules 3.1110 and 3.1113; and Code of Civil Procedure section 425.16, subdivision (c), as applicable to the fee motion opposed.

1 3. The Clerk's authority to accept this paper is under Government Code sections 68150 and
2 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and
3 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court,
4 rules 2.118 and 2.119; this paper does not present any of those grounds.

5 4. The Court's authority to consider the substance is under Code of Civil Procedure section
6 425.16, subdivision (c), and California Rules of Court, rules 3.1110 and 3.1113.

7 5. This paper is filed August 14, 2026, which is early and still timely under Code of Civil
8 Procedure section 1005, subdivision (b), and California Rules of Court, rule 3.1300, measured
9 from August 11, 2026 service of the motion set for September 8, 2026, 9:00 a.m., Department
10 301 (ROA-confirmed; Tx 80309587; DocIDs 10369670, 10369671, 10369673). Plaintiff
11 opposes the motion and does not concede a stipulated date.

12 Hearing: September 8, 2026, 9:00 a.m., Department 301 (ROA-confirmed; Tx 80309587; DocIDs
13 10369670 notice, 10369671 O'Connell declaration, 10369673 MPA; served August 11, 2026).
14 Plaintiff opposes the motion and does not concede a stipulated date. Hon. Christine Van Aken.
15 Case No. CGC-25-631801.

16
17 SUPERIOR COURT OF CALIFORNIA COUNTY OF SAN FRANCISCO
18 FRANCISCUS DYLAN ROSARIO, Plaintiff,

19 v.

20 SUBHI ABDELHALIM; CSAA INSURANCE EXCHANGE; DOES 1 through 50, inclusive, De-
21 fendants.

22 Case No.: CGC-25-631801

23 **[PROPOSED] ORDER DENYING OR, IN THE ALTERNATIVE, REDUCING DEFEN-**
24 **DANTS' MOTION FOR ATTORNEYS' FEES AND COSTS UNDER CODE OF CIVIL**
25 **PROCEDURE SECTION 425.16(c)**

26 Date: September 8, 2026, 9:00 a.m., Department 301 (ROA-confirmed; Tx 80309587; DocIDs
27 10369670, 10369671, 10369673; served August 11, 2026) Time: 9:00 a.m. Dept: 301

28 The Motion for Attorneys' Fees and Costs under Code of Civil Procedure section 425.16(c) of

1 Defendants CSAA Insurance Exchange; Carbone, Smith & Koyama; and Michael R. Chambers,
2 set for September 8, 2026, 9:00 a.m., Department 301 (ROA-confirmed; Tx 80309587; DocIDs
3 10369670, 10369671, 10369673; served August 11, 2026), came on for hearing. Plaintiff opposes
4 the motion and does not concede a stipulated date. The Honorable Christine Van Aken presiding.
5 Plaintiff Franciscus Dylan Rosario appeared in propria persona. Defendants appeared by counsel
6 of record.

7 The Court, having considered the moving papers, opposition papers, reply papers (if any), Plain-
8 tiff's evidentiary objections, Plaintiff's objections to Defendants' [Proposed] Order, the files and
9 records in this action, and argument of the parties, and good cause appearing, hereby finds and
10 orders as follows:

11 **FINDINGS:**

12 A. Defendants demand \$35,973.00 in attorney fees and \$1,137.46 in costs, totaling \$37,110.46.

13 B. The Court applies the lodestar method. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131-1134;
14 *Frym v. 601 Main Street LLC* (2022) 82 Cal.App.5th 613, 620-621.)

15 C. Fees recoverable under section 425.16(c) are those reasonably incurred in connection with the
16 special motion to strike, not unrestricted fees for litigating the entire case. (*Christian Research*
17 *Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1320.)

18 D. Defendants concurrently seek the same \$1,137.46 through a Memorandum of Costs (MC-010).
19 Double recovery of identical costs is improper.

20 **ORDER (primary):**

- 21 1. Defendants' Motion for Attorneys' Fees and Costs under Code of Civil Procedure section
22 425.16(c) is **DENIED**.
- 23 2. No attorney fees are awarded by this Order.
- 24 3. No costs are awarded by this Order. Cost claims asserted in Defendants' MC-010 dated
25 August 11, 2026, are reserved for determination on Plaintiff's Motion to Tax or Strike Costs
26 under California Rules of Court, rule 3.1700(b), and are not determined by this Order except
27 that this Order awards \$0 costs on the fee motion to avoid double recovery.
- 28 4. Defendants' [Proposed] Order is **DENIED** and shall not be signed.

1 5. Nothing in this Order enters a judgment of dismissal. Nothing in this Order finds that Plaintiff
2 stipulated to the September 8, 2026 date noticed by Defendants or submitted on the motion.

3 6. This Order is without prejudice to Plaintiff's appellate rights concerning the August 6, 2026
4 order granting the special motion to strike and related rulings. Any fee award that might
5 later be entered after further proceedings would be contingent on the survival of that order on
6 appeal.

7 **ALTERNATIVE ORDER (complete only if the Court declines paragraph 1 denial and in-**
8 **stead awards a reduced amount):**

9 7. In the alternative to paragraph 1, Defendants' Motion is **GRANTED IN PART AND DE-**
10 **NIED IN PART** as follows:

11 a. Reasonable attorney fees awarded: \$_____ (not to exceed a verified anti-SLAPP-only
12 lodestar after taxing non-strike hours, cross-case duplication with CGC-25-631802, and arith-
13 metic reconciliation of Exhibit C).

14 b. Costs awarded on this fee motion: **\$0** (MC-010 reserved for the tax-motion calendar).

15 c. Paragraphs 4, 5, and 6 above remain in force.

16 IT IS SO ORDERED.

17 This [Proposed] Order is lodged Dated: August 14, 2026.

18 Department 301